

SUPERIOR COURT OF CALIFORNIA COUNTY OF LOS ANGELES

COURTHOUSE ADDRESS:

PLAINTIFF:

DEFENDANT:

COMPLEX CIVIL CASE QUESTIONNAIRE

CASE NUMBER

DEPARTMENT/UNIT

TELEPHONE NUMBER

Name of person filling out this form: _____

Telephone Number: _____

If this form is completed by counsel, identify the party that counsel represents: _____

Name of bench officer to whom case is assigned: _____

Department to which case is assigned: _____

—INSTRUCTIONS—

Pursuant to California Rule of Court, rule 3.403, the Court must decide as soon as reasonably practicable whether an action is a complex case, and the Court has the continuing authority to determine that a civil action is a complex case. When a judge to whom a case is assigned determines that the case should be designated as “complex” within the meaning of California Rule of Court, rule 3.400, the judge may seek to transfer the case to the Complex Litigation Program using the procedure specified in Local Rules, rule 3.3(k). This form is designated by the Assistant Supervising Judge, Complex Litigation Courts as the Complex Civil Case Questionnaire to be completed by the judge assigned to the case, or by a party, on order of the Court.

The purpose of this questionnaire is to help the Court identify cases appropriate for inclusion in the Complex Litigation Program. Responses should be derived from the Court’s experience with the case since it was filed, examination of the court case record, and information provided by parties and counsel, to the extent that information is readily available to the individual(s) completing this questionnaire. The questionnaire and the court case record will be reviewed by the Assistant Supervising Judge, Complex Litigation Courts. The information provided in this questionnaire should be as thorough as possible to facilitate this review and to expedite determination of whether the case should be included in the Program. The Assistant Supervising Judge, Complex Litigation Courts may request a telephonic status conference with the parties to obtain additional information. The Assistant Supervising Judge, Complex Litigation Courts may decide whether or not to accept the case for the Complex Litigation Program with or without a hearing. If the case is not accepted for the Complex Litigation Program, the assigned judge’s complex case designation nevertheless governs the case.

SHORT TITLE	CASE NUMBER
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1. According to California Rules of Court, rule 3.400, a complex case is: "An action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties and counsel."

☐ This definition accurately and fully describes this case.

☐ Although the definition does not precisely fit this case, it should be deemed complex because:

2. Which of the following case type(s) best describe(s) this case?

a. ☐ Antitrust or trade

b. ☐ Construction defect case

c. ☐ Securities claims or investment losses involving many parties

d. ☐ Environmental or toxic tort claims involving many parties

e. ☐ Claims involving mass torts

f. ☐ Claims involving class actions

g. ☐ Insurance coverage claims arising out of any of the above. Please indicate case type forming basis of insurance coverage claim:

h. ☐ Other case type. Please describe:

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3. This case should be processed as a complex civil litigation case because it involves or is likely to involve the following:

- a. ☐ Numerous pre-trial motions raising difficult or novel issues that will be time-consuming to resolve.

Please briefly describe:

- b. ☐ Management of a large number of witnesses or substantial amount of documentary evidence.

Estimated number of witnesses: _____

Estimated number of pages of documentary evidence: _____

- c. ☐ Management of a large number of separately represented parties.

Estimated number of parties: _____ and number of counsel: _____

- d. ☐ Coordination with related actions pending in one or more courts in other counties, states, countries or in a federal court. Please indicate case names, numbers and jurisdictions (attach additional sheet if necessary):

- e. ☐ Substantial post-judgment judicial supervision. Please describe the nature and duration of the judicial supervision required and types of post-judgment activity needing supervision:

- f. ☐ Describe any other unique characteristics which qualify this case for inclusion in the Court's Complex Litigation Program:

4. When was this case filed? _____

5. How many causes of action are alleged in the complaint? _____

How many plaintiffs are named in the complaint? _____

How many defendants are named in the complaint? _____

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6. How many cross actions have been filed? _____

How many are anticipated? _____

7. What involvement has the Court had to date in pretrial matters?

a. Law and Motion proceedings. Please indicate type, complexity and rulings made:

b. Discovery proceedings. Please indicate type, complexity and rulings made:

c. Settlement negotiations or alternate dispute resolution (ADR) proceedings. Please indicate number of sessions, parties participating and any other relevant non-privileged details:

d. Other involvement in pre-trial activities:

e. What issues remain to be resolved, and how many hearings over what period of time will be required to resolve them?

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f. Has a trial date been set? ☐ No ☐ Yes Date: _____

g. Has any party filed a motion for preference in setting trial, or does any party currently intend to file such a motion? ☐ No ☐ Yes Party: _____

h. Does the assigned court wish to keep the case? ☐ Yes ☐ No

Why or why not?

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